

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

1. Complaint No. CC006000000055510

Geeta Sekhar

Versus

Nirmal Lifestyle Ltd

..... Complainant

..... Respondent

Along with

2. Complaint No. CC006000000055513

Narendra Nadkarni

Versus

Nirmal Lifestyle Ltd

..... Complainant

..... Respondent

Along with

3. Complaint No. CC006000000055514

Umesh Bahdur

Versus

Nirmal Lifestyle Ltd

..... Complainant

..... Respondent

Along with

4. Complaint No. CC006000000055515

Sheela Ved

Versus

Nirmal Lifestyle Ltd

..... Complainant

..... Respondent

Along with

5. Complaint No. CC006000000055519

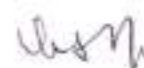
Ashok Anand

Versus

Nirmal Lifestyle Ltd

..... Complainant

..... Respondent



Along with

6. Complaint No. CC006000000055520

Shrikumar Naik

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondents

7. Complaint No. CC006000000055521

Ashok Balani

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

8. Complaint No. CC006000000055522

Rajkumar Balani

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

9. Complaint No. CC006000000055525

Kamlesh Advani

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

10. Complaint No. CC006000000055526

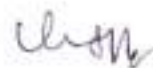
Mukesh Hiran

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondents



Along with
11. Complaint No. CC006000000055527

Dhiraj Saxena

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with
12. Complaint No. CC006000000055528

Upendra Tiwari

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondents

Along with
13. Complaint No. CC006000000055529

Dr Praveen Mody

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with
14. Complaint No. CC006000000055530

Suresh Shetty

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with
15. Complaint No. CC006000000055531

Prashant Borade

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

16.. Complaint No. CC006000000055532

Mr Dharmu Balani And Mrs Neetu Balani Complainants

Versus

Nirmal Lifestyle Ltd Respondents

Along with

17. Complaint No. CC006000000055534

Mr Manish Korgaonkar & Mrs Meena korgaonkar Complainant

Versus

Nirmal Lifestyle Ltd Respondent

Along with

18. Complaint No. CC006000000055535

Pradeep D'Souza Complainant

Versus

Nirmal Lifestyle Ltd Respondent

Along with

19. Complaint No. CC006000000055536

Mohanlal Padhi Complainant

Versus

Nirmal Lifestyle Ltd Respondent

Along with

20. Complaint No. CC006000000055538

Colville Sequeira Complainant

Versus

Nirmal Lifestyle Ltd Respondent

Along with

21. Complaint No. CC006000000055540

Mohamed Ansari

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

22. Complaint No. CC006000000055541

Ramprakash Iyar

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

23. Complaint No. CC006000000055544

Kulwant Singh Mokha

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondents

Along with

24. Complaint No. CC006000000055545

Anthony Peter

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with

25. Complaint No. CC006000000055546

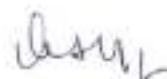
Anand Vachhani

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent



Along with
26. Complaint No. CC006000000055547

R Krishnan Complainant
Versus
Nirmal Lifestyle Ltd Respondent

Along with
27. Complaint No. CC006000000055548

Manoj R Iyar Complainant
Versus
Nirmal Lifestyle Ltd Respondent

Along with
28. Complaint No. CC006000000055549

Manisha A Ramchandani Complainant
Versus
Nirmal Lifestyle Ltd Respondent

Along with
29. Complaint No. CC006000000055550

Aruna Godwin Complainant
Versus
Nirmal Lifestyle Ltd Respondent

Along with
30. Complaint No. CC006000000055553

Avaneet Soni Complainant
Versus
Nirmal Lifestyle Ltd Respondent

Along with
31. Complaint No. CC006000000055518

Deepa Patil

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Along with
32. Complaint No. CC006000000056338

Gautam Addanki

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA

Adv. Sanjay Chaturvedi appeared for the complainant in all above complaints.

Adv. Tushar Kadam a/w Vaishali Mohite appeared for the respondent in all above complaints.

ORDER

[4th April, 2019]

1. The complainants in above complaints are allottees in the project "**Blue Diamond**" being developed by the respondent at L.B.S Marg, Village Nahur, Mulund (West), Mumbai – 400 080. They booked their respective flats in the project and executed registered agreements for sale way back in the year 2005. They have also paid a substantial amount of money towards the consideration value of their flats. However, the respondent has failed to complete the project and hand over the possession of flats to them till date. Hence, they have filed these complaints praying for directions to the respondent to hand over the flats to the complainants with occupancy certificate and all other amenities. They also want that the respondent to form a co-operative

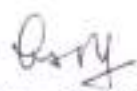
housing society and pay interest for the period of delay in giving them possession of flats under section-18 of Maharashtra Real Estate (Regulation & Development) Act, 2016 (hereinafter referred to as RERA).

2. The complaints were heard in the presence of concerned parties on various dates. Time was also given to them to file their written submissions. The respondent sought adjournment of proceedings for 4 weeks to compile details of internal and external sources which was granted. The complainants also submitted relevant information of their complaints in tabular form (annexed).
3. During the course of hearing, the respondent submitted that the project had delayed because a dispute started that a part of the project land was private forest. The project got commenced in the year 2005. The respondent acquired commencement certificate in August, 2002 which was renewed from time to time. The Government of Maharashtra issued a circular in the year 2005-06 under the Maharashtra Private Forest (Acquisition) Act, 1975. Thereafter, a mutation entry dated 25th May, 2006 bearing No. 777 was affected declaring the project land as private forest.
4. In view of the above developments, the Municipal Corporation of Greater Mumbai issued 'stop work notice' in May 2006. As a result, the project remained came to a standstill. The superintendent of Land Records, Mumbai Suburban directed that an entry of "Forest Land" be affected in the property Card for survey No. 88 (P), CTS Nos. 491A (P) admeasuring 15192.90 sq. mtrs., as the same was related to the Project land and for some other CTS numbers. The dispute of area being forest land passed through prolonged litigations and was finally decided by Hon'ble Supreme Court in Civil Appeal bearing No. 1102 of 2014 on 30th January, 2014.
5. Subsequently, the Government of Maharashtra issued a letter dated 12th December, 2014 addressing this issue. Finally, the entry of Private Forest

Land was deleted from other rights columns for GTS No. 491A on 17th January, 2015. The respondent has therefore, argued that the project got delayed because of this litigation and time lost in getting the favorable court orders for which he was not responsible. He further submitted that he would complete the project during this year.

6. The respondent strongly refused the arguments and submissions made by the complainants. He further submitted that, at the time of entering into agreement no date of possession had been agreed upon by the parties concerned. Hence it was wrong to say or conclude that the complainants were entitled to any compensation for delay in handing over the possession of their respective flats. The delay was not intentional and was due to the circumstances beyond his control. He further submitted that the complainants were filing complaints with a mala fide intent and on erroneous and fictitious grounds. The respondent also stated that he had taken steps to form an association of the allottees.
7. The facts of this case show that, the complainants had deposited their money long back to purchase apartments in the project and executed their agreement for sale in the year 2005. No date of possession has been written in the agreements, which was in fact a violation of the provisions of Maharashtra Ownership of Flats (Regulation of The Promotion of Construction, Sale, Management and Transfer) Act, 1963 (MOFA). This could also be due to reason that the parties were uncertain about the future of the project.
8. The dispute regarding the part of the project land being "Private Forest Land" started in the year 2006 and was finally resolved after the judgement of Hon'ble Supreme Court of India in 2014. During this period the respondent could not continue the construction work because of the 'stop work' notices issued by the concerned authorities. However, for the home buyers this resulted in a long waiting time to get their flats even after the payment of almost entire consideration value.

9. During this period between the year 2006 and 2014 ,the respondent could have refunded the allottees their money and given them compensation as a project was getting delayed. Alternatively, he could have given them apartments in other projects being developed by him. However, he didn't exercise their options and retained the money given by home buyers. He is, therefore, responsible to compensate them for the period of delay particularly for the time after the project was cleared by the Hon'ble Supreme Court in the year 2014.
10. The omission of date of possession in the agreement does not entitle the promoter to take indefinite time to complete the project and make the allottees wait for more than 13 years. It is obligatory for him to give a definite date of completion of the project to the allottees.
11. In view of the above discussions, the respondent is directed to pay interest to the complainants on the money paid by them at the rate prescribed by MahaRERA under RERA and relevant rules- i.e. MCLR + 2% w.e.f. 1st January, 2015 till the actual date of possession. The outstanding amount to be paid by the allottees may be given set off against this payment. He is also directed to complete the formation of the association/society of the allottees.
12. With the above directions, all these complaints stand disposed of.


(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA

Final List with Details of Nirmal Lifestyle Blue Diamond Flat Owners for RERA

Sr #	Names of Flat Purchaser	Group	Wing	Flat #	Carpet Area (SQF)	Agreement Date	Registration Date	Date of Possession	Consideration Amount in ₹	Amount Paid till now in ₹	Loan Taken (Y/N)	Rent Paid (Y/N)	PoA (Y/N)	Signed Vakalatnama with SC (Y/N)
1	Mr Colville Sequeira/ Mrs Clara Sequeira	UNRGS	B	1007	786	N/A	N/A	N/A	₹ 2,854,900	₹ 1,998,380	No	N		Y
2	Mr Mohamed Asif Ansari	UNRGS	A	1001	786	N/A	N/A	N/A	₹ 3,008,520	₹ 2,406,818	No	N	Y/Recd	Y
3	Mr Kulwant Singh Mokha/ Mrs Rajendra Kaur Mokha	UNRGS	A	202/03	907	N/A	N/A	N/A	₹ 4,668,030	₹ 3,751,000	No	N		Y
1	Dr Prashant Borade	MPRNT	B	1503/04	1180	3-Jun-05	4-Jun-05	Not mentioned	₹ 5,248,152	₹ 5,248,152	Yes	Y	N	Y (Email)
2	Mr Mohanlal Padhi (Bapu)/ Ms Nibedita Samantarey	MPRNT	B	401	784	30-Mar-04	30-Mar-04	Not mentioned	₹ 2,831,400	₹ 2,831,400	Yes and closed	Y	N	Y (Email)
3	Mrs Vinaya Pradeep D'Souza/ Mr Pradeep James D'Souza	MPRNT	A	204	784	23-Feb-05	23-Feb-06	Not mentioned	₹ 3,855,060	₹ 3,855,060	Yes	Y	N	Y
1	Mr Narendra Nadkarni/ Mrs Sangeeta Nadkarni	MNPR1	A	1102/03	980	30-Dec-05	2-Feb-06	Not mentioned	₹ 4,342,589	₹ 3,474,064	Yes and closed	N		Y
2	Mrs Sheela Ajay Ved Vinay Ved	MNPR1	A	2000/07	1172	5-Mar-05	5-Mar-05	Sep-07	₹ 5,198,139	₹ 3,052,000	No	N		Y
3	Mrs Deepa Panditrao Patil Ashwin Parmar	MNPR1	A	1104/05	087	6-Jun-04	6-Jun-04	Not mentioned	₹ 5,163,750	₹ 4,098,737	Yes and closed	N	Y/Recd	Y
4	Mr Avaneet Soni/ Mrs Manisha Soni	MNPR1	A	1902/03	980	7-Oct-05	18-Oct-05	Not mentioned	₹ 4,280,850	₹ 4,280,850	Yes and closed	N		Y
5	Dr Ashok Anand	MNPR1	A	901	786	31-Dec-03	7-Jan-04	Not mentioned	₹ 2,745,000	₹ 2,305,000	Yes and closed	N		Y
6	Mr Shrikumar P Nair	MNPR1	A	1201	786	29-Aug-03	29-Aug-06	Not mentioned	₹ 3,431,250	₹ 2,430,313	No	N	Y/Recd	Y (Email)
7	Mr Ashok Balani/ Mrs Kanchan Balani	MNPR1	A	2504/04 /06	1062	2-May-06	2-May-06	Not mentioned	₹ 6,558,800	₹ 3,125,000	Yes and closed	N		Y
8	Mr Rajkumar Balani/ Mrs Sapna Balani	MNPR1	A	2604/05 /06	1062	2-May-06	2-May-06	Not mentioned	₹ 6,558,800	₹ 3,125,000	Yes and closed	N		Y
9	Mrs Minal Advani/ Dr Kamlesh Advani	MNPR1	A	801	786	13-Apr-07	13-Apr-07	Not mentioned	₹ 2,909,700	₹ 2,327,760	No	N		Y

Sekhar S. & Co. v/s
 Nirmal Lifestyle Limited
 Sekhar and 31 others
 Complainant
 Respondent

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10	Mrs Aruna Godwin	MNPR1	A	704/05	987	16-Jan-04	16-Jan-04	Not mentioned	₹ 3,154,500	₹ 3,154,500	Yes and closed	N	Y/Recd	Y
1	Mr Sekhar S/ Mrs Geeta Sekhar	MNPR2	B	1003/04	1180	18-Feb-04	20-Feb-04	Mar-06	₹ 4,095,000	₹ 3,951,000	Yes and closed	N		N
2	Mr Mukesh R Hiran/ Pratibha M Hiran	MNPR2	B	1303/04	1180	14-Dec-05	14-Dec-05	Not mentioned	₹ 4,914,000	₹ 4,914,000	Yes and closed	N		Y
3	Mr Dhiraj Saxena/ Mrs Preeti Saxena	MNPR2	B	807	786	31-Dec-03	31-Dec-03	Mar-06	₹ 2,688,838	₹ 2,924,000	Yes and closed	N	Y/Recd	Y
4	Mr Upendra Tiwari	MNPR2	B	1905/06	960	24-Mar-05	24-Mar-05	Aug-07	₹ 4,158,540	₹ 4,158,540	Yes and closed	N	Y/Recd	Y
5	Dr Praveen Mody	MNPR2	B	501	784	18-May-05	19-May-05	Not mentioned	₹ 2,504,700	₹ 1,878,525	No	N		Y
6	Mr Dharmu Balani/ Mrs Neetu Balani	MNPR2	B	2201/02/03	1983	2-May-06	2-May-06	Not mentioned	₹ 7,087,200	₹ 3,125,000	Yes and closed	N		Y
7	Mr Manish Korgaonkar/ Mrs Meena Korgaonkar	MNPR2	B	1407	786	2-Nov-04	3-Nov-04	Not mentioned	₹ 3,239,100	₹ 3,239,100	Yes	N		Y
8	Mr Ramprakash R Iyer/ Mrs R Rajeshwari	MNPR2	B	304	803	21-Feb-05	21-Feb-05	Dec-06	₹ 3,336,840	₹ 3,336,840	Yes and closed	N		Y
9	Mr Anand Vachhani/ Mrs Komal A Vachhani	MNPR2	B	1507	786	27-Oct-03	10-Nov-03	Mar-06	₹ 2,350,000	₹ 1,880,000	Yes and closed	N		Y
1	Mr Manoj Ramkrishnan/ Mrs Sunita Manoj	MNPR3	B	502/03	1180	14-Jan-06	24-Jan-06	Not mentioned	₹ 5,569,200	₹ 5,569,341	Yes and closed	N		Y
2	Mrs Manisha Anil Ramchandani/ Mr Anil Jashan Ramchandani	MNPR3	B	2003/04	1180	25-Sep-06	25-Sep-06	Not mentioned	₹ 4,555,802	₹ 3,143,502	No	N		Y
3	Mr Anthony Peter	MNPR3	A	601	803	28-Dec-04	28-Dec-04	Mar-06	₹ 3,348,000	₹ 3,348,000	Yes and closed	N	Y/Recd	Y

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4	Dr Umesh Bahadur/ Mrs Jayanti Bahadur	MNPR3	B	1907	766	7-Feb-05	7-Feb-05	Dec-06	₹ 3,336,822	₹ 3,337,000	Yes and closed	N		Y
5	Mr R. Krishnan/ Mrs Latha Krishnan	MNPR3	B	1703/04	1180	28-Oct-03	29-Oct-03	Not mentioned	₹ 4,054,060	₹ 4,054,060	Yes and closed	N		Y
6	Mr Suresh Shetty	MNPR3	B	403/03	1180	7-Feb-06	8-Feb-06	Not mentioned	₹ 4,258,800	₹ 4,258,800	Yes	N		Y